

1 ENGROSSED HOUSE
2 BILL NO. 2997

By: Kerbs of the House

3 and

4 Gollihare of the Senate

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6
7 An Act relating to motor vehicles; amending 47 O.S.
8 2021, Section 585, which relates to denial,
9 suspension or revocation of license; modifying
10 maximum amount of certain administrative fine;
11 amending 74 O.S. 2021, Section 3601.1, as last
12 amended by Section 36, Chapter 29, O.S.L. 2023 (74
O.S. Supp. 2025, Section 3601.1), which relates to
maximum number of full-time-equivalent employees;
modifying maximum number of full-time-equivalent
employees for certain agencies; and providing an
effective date.

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16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 47 O.S. 2021, Section 585, is
18 amended to read as follows:

19 Section 585. A. The Commission may deny any application for
20 license, or suspend or revoke a license issued, or impose a fine, in
21 accordance with the provisions of the Administrative Procedures Act,
22 Section 250 et seq. of Title 75 of the Oklahoma Statutes. If the
23 applicant or licensee is a used motor vehicle salesperson, the
24 Commission shall in like manner also notify the person, firm,

1 association, corporation or trust with whom associated, or in whose
2 association the applicant or licensee is about to enter. The
3 Commission shall have the power to compel the production of records
4 and papers bearing upon the complaints. The Commission shall have
5 the power to subpoena and bring before it any person in this state,
6 or take testimony of any such person by deposition, with the same
7 fees and mileage and in the same manner as prescribed by law in
8 judicial procedure before courts of the state in civil cases. Any
9 party to the hearing shall have the right to the attendance of
10 witnesses in his behalf upon designating to the Commission the
11 person or persons sought to be subpoenaed. If the Commission shall
12 determine that any licensee is guilty of violation of any of the
13 provisions of this act, the license of the licensee shall be
14 suspended or revoked, or a fine imposed as authorized by this act.

15 B. The Commission may assess a fine not to exceed One Hundred
16 Dollars (\$100.00) against a used motor vehicle dealer who:

17 1. Willfully fails to deliver certificates of title to
18 purchasers of used motor vehicles within thirty (30) days of the
19 sale of the vehicles;

20 2. Fails to properly reassign the certificate of title to a
21 used motor vehicle as required by law upon the sale or transfer of
22 ownership of the used motor vehicle;
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1 3. Sells an extended insurance warranty to a purchaser, but
2 fails to provide a copy of the warranty to the purchaser or fails to
3 disclose who the third party insurer will be; or

4 4. Delivers a used motor vehicle to a potential purchaser with
5 the intent to sell the vehicle, but does not complete the
6 transaction within fifteen (15) calendar days of the delivery of the
7 used motor vehicle.

8 C. An appeal from the decision of the Commission to suspend or
9 revoke a license or to impose a fine shall be taken in accordance
10 with Article II of the Administrative Procedures Act, Section 308a
11 et seq. of Title 75 of the Oklahoma Statutes.

12 D. Any applicant or licensee who knowingly or willfully makes
13 or causes to be made any false statement of a fact required under
14 the provisions of Section 581 et seq. of this title shall be subject
15 to an administrative fine not to exceed ~~One~~ Ten Thousand Dollars
16 ~~(\$1,000.00)~~ (\$10,000.00).

17 SECTION 2. AMENDATORY 74 O.S. 2021, Section 3601.1, as
18 last amended by Section 36, Chapter 29, O.S.L. 2023 (74 O.S. Supp.
19 2025, Section 3601.1), is amended to read as follows:

20 Section 3601.1. A. For purposes of Sections 3601.1 through
21 3603 of this title, the term "employee" means a full-time employee
22 or any number of part-time employees whose combined weekly hours of
23 employment equal those of a full-time employee, but shall not
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1 include temporary employees working on a seasonal basis between May
2 1 and October 31.

3 B. Beginning July 1, 2008, the maximum number of full-time-
4 equivalent employees for each of the following agencies, boards,
5 commissions, departments, or programs shall not exceed the numbers
6 specified in this section, except as may be authorized pursuant to
7 the provisions of Section 3603 of this title.

8	MAXIMUM NUMBER OF
9	FULL-TIME-EQUIVALENT
10	EMPLOYEES
11 Oklahoma Employment Security Commission	1150
12 Oklahoma Accountancy Board	11
13 Board of Governors of the Licensed Architects, 14 Landscape Architects and Registered Commercial 15 Interior Designers of Oklahoma	4
16 Board of Chiropractic Examiners	3
17 State Board of Cosmetology and Barbering	16
18 Board of Dentistry	10
19 Oklahoma Funeral Board	5
20 State Board of Licensure for Professional 21 Engineers and Land Surveyors	10
22 State Board of Medical Licensure and Supervision/ 23 Board of Podiatric Medical Examiners/State 24 Board of Examiners of Perfusionists	29

1	Oklahoma Energy Resources Board	5
2	Oklahoma New Motor Vehicle Commission	6 <u>12</u>
3	Oklahoma Board of Nursing	35
4	Oklahoma State Board of Examiners for Long-Term	
5	Care Administrators	4
6	Board of Examiners in Optometry	3
7	State Board of Osteopathic Examiners	7
8	State Board of Pharmacy	15
9	State Board of Examiners of Psychologists	2
10	Oklahoma Real Estate Commission	26
11	Board of Examiners for Speech-Language Pathology	
12	and Audiology	2
13	Oklahoma Used Motor Vehicle, Dismantler, and	
14	Manufactured Housing Commission	15 <u>18</u>
15	State Board of Veterinary Medical Examiners	6
16	Oklahoma Firefighters Pension and Retirement	
17	System	13
18	Oklahoma Police Pension and Retirement System	12
19	Teachers' Retirement System of Oklahoma	52
20	Oklahoma Public Employees Retirement System	63
21	Oklahoma Student Loan Authority	85
22	Oklahoma Industrial Finance Authority/Oklahoma	
23	Development Finance Authority	10
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1	State and Education Employees Group Insurance	
2	Board	178
3	Oklahoma Capital Investment Board	4
4	State Board of Licensed Social Workers	1
5	Oklahoma State Employees Benefits Council	38
6	Banking Department	46
7	Liquefied Petroleum Gas Administration	10
8	C. The duties and compensation of employees, not otherwise	
9	prescribed by law, necessary to perform the duties imposed upon the	
10	Oklahoma Public Employees Retirement System Board of Trustees by law	
11	shall be set by the Board of Trustees.	
12	D. Temporary employees of the Oklahoma Used Motor Vehicle,	
13	Dismantler, and Manufactured Housing Commission between the dates of	
14	November 1 and January 31 annually shall not be counted toward the	
15	maximum number of full-time-equivalent employees provided for in	
16	this section.	
17	SECTION 3. This act shall become effective November 1, 2026.	
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1 Passed the House of Representatives the 16th day of March, 2026.

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4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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9 Presiding Officer of the Senate